

Court No. - 21

Case :- WRIT - C No. - 16448 of 2023

Petitioner :- Vaseeullah

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Krishna Dev Mishra, Amar Nath

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. It transpires that order of final assessment has been issued in a printed proforma. It does not indicate application of mind nor does it advert to the objection filed by the petitioner wherein the petitioner had disputed having used electricity unauthorisedly.
2. The provisions of the Code requires the Assessing Authority to offer opportunity to the consumer to file objections and to afford hearing to him. As a necessary corollary, the authorised officer while passing assessment order, should advert to the objections and give reasons for not accepting the objections. Order in the printed proforma is a complete antithesis of the requirements of law.
3. Let respondent no. 2 file his personal affidavit and explain how he justifies the impugned assessment order.
4. List as fresh on 29.05.2023.
5. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned assessment order.
6. The Registrar (Compliance) will communicate the instant order to the Managing Director, Poorvanchal Vidyut Vitran Nigam Ltd. to ensure that such orders in printed proforma are not passed.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The instant petition has been filed praying for quashing of the notice dated 6.01.2022 passed by respondent no.2 demanding Rs.72,572/- from the petitioner in a case of assessment under Section 126 of the Electricity Act, 2003.

2. On 16.05.2023, the following order was passed:-

"1. It transpires that order of final assessment has been issued in a printed proforma. It does not indicate application of mind nor does it advert to the objection filed by the petitioner wherein the petitioner had disputed having used electricity unauthorisedly.

2. The provisions of the Code requires the Assessing Authority to offer opportunity to the consumer to file objections and to afford hearing to him. As a necessary corollary, the authorised officer while passing assessment order, should advert to the objections and give reasons for not accepting the objections. Order in the printed proforma is a complete antithesis of the requirements of law.

3. Let respondent no. 2 file his personal affidavit and explain how he justifies the impugned assessment order.

4. List as fresh on 29.05.2023.

5. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned assessment order.

6. The Registrar (Compliance) will communicate the instant order to the Managing Director, Poorvanchal Vidyut Vitran Nigam Ltd. to ensure that such orders in printed proforma are not passed."

3. On matter being taken up today, an affidavit of respondent no.2 has been filed in which an explanation has been offered to the effect that the objection of the petitioner was not put up for

consideration by the concerned Clerk and on account of which, the same could not be considered at the time of passing the order of final assessment. It is stated that now by a communication dated 22.5.2023, the petitioner has been informed that he may file objection within fifteen days alongwith evidence so that the matter could be heard and decided. Sri N.K. Tiwari, learned counsel for the respondents states that the respondents will pass a fresh order.

4. Having regard to the aforesaid stand, we quash the order of final assessment dated 6.12.2022 and leave it open to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

5. The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.5.2023

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